25CHCV00621 25CHCV00621

County: los-angeles

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Case Number: 25CHCV00621 Hearing Date: August 6, 2026 Dept: F47

Dept. F47

Date: 8/6/26

Case #25CHCV00621

MOTION FOR
ATTORNEY FEES

Motion filed on 3/26/26.

MOVING PARTY: Plaintiff Daisy Maldonado

RESPONDING PARTY: Defendant General Motors LLC

NOTICE: ok

RELIEF REQUESTED: An order awarding Plaintiff attorney fees in the amount of $16,805.00 which consists of: (1) $10,244.00 in attorneys' fees for Quill & Arrow, LLP (QA); (2) a 1.25 multiplier enhancement on the attorneys' fees (or $2,561.00); and (3) an additional $4,000.00 for Plaintiff's counsel to review Defendant's Opposition; draft the Reply; and attend the hearing on this Motion.

RULING: The motion is granted as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Daisy Maldonado's (Plaintiff) purchase of a new 2022 Chevrolet Suburban (the Vehicle) which was manufactured and/or distributed and warranted by Defendant General Motors LLC (Defendant). Plaintiff contends that after the purchase, the Vehicle exhibited numerous defects and nonconformities which substantially impair its use, value and safety. Additionally, Plaintiff contends that after a reasonable number of repair attempts Defendant and/or its authorized repair facilities have failed to begin and complete necessary repairs within a reasonable time. Further, Plaintiff contends that Defendant has failed to replace the Vehicle or provide restitution.

On 2/20/25, Plaintiff filed this action against Defendant alleging causes of action under the Song-Beverly Consumer Warranty Act. On 5/2/25, Defendant answered the complaint. On 11/19/25, Defendant served a CCP 998 Offer to Compromise in the amount of $71,000.00, plus attorneys' fees, costs and expenses to be determined by motion. Plaintiff accepted the offer on 11/24/25.

On 3/26/26, Plaintiff filed and served the instant motion seeking an order awarding Plaintiff attorney fees in the amount of $16,805.00 which consists of: (1) $10,244.00 in attorneys' fees for Quill & Arrow, LLP (QA); (2) a 1.25 multiplier enhancement on the attorneys' fees (or $2,561.00); and (3) an additional $4,000.00 for Plaintiff's counsel to review Defendant's Opposition; draft the Reply; and attend the hearing on this Motion. Defendant has opposed the motion and Plaintiff has filed a reply to the opposition.

ANALYSIS

Contrary to the assertion in the opposition, the Court does not find that this case represents a rare case where a plaintiff's attorney fee request is so inflated, padded with unnecessary litigation activities and unreasonable that the Court should deny the request outright. (See Opposition, p.1:2-8 citing Ketchum (2001) 24 C4th 1122, 1137).

Plaintiff is entitled to recover attorney fees, costs and expenses as the prevailing party in this action. Civil Code 1794(d) provides:

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

The lodestar method of calculation applies when determining an award of attorney’s fees under the Song-Beverly Act. Tidrick (2025) 112 CA5th 1147, 1157. The lodestar method ordinarily begins with multiplying the number of hours reasonably spent by a reasonable hourly rate. Id. at 1157-1158; Ketchum (2001) 24 C4th 1122, 1134. The lodestar may be adjusted based on factors specific to the case to fix the fee at the fair market value of the legal services provided. Tidrick, supra. A reasonable hourly rate is the rate prevailing in the community for similar work. Tidrick, supra at 1157 citing PLCM Group, Inc. (2000) 22 C4th 1084, 1095. The prevailing party is also entitled to recover attorney fees incurred for the preparation of the fee motion. Robertson (2006) 144 CA4th 785, 817; Graciano (2006) 144 CA4th 140; Serrano (1982) 32 C3d 621, 631.

Defendant has failed to establish that time spent on certain tasks by Plaintiff’s attorneys in the preparation and/or prosecution of this case was unreasonable, duplicative and/or that the fees in relation to same are not otherwise recoverable. Nor has Defendant established that the hourly rates charged by the various attorneys in Plaintiff’s counsel’s office that worked on this case are unreasonable. The Court finds that the hourly rates charged by Plaintiff’s counsel, which range from $350/hour to $625/hour, to be reasonable based on the circumstances and each attorney’s education and experience.

However, the Court finds that Plaintiff has failed to establish that the fees incurred in relation to the instant motion were reasonably incurred. Plaintiff contends that Defendant refused to negotiate fees in good faith and “forced” Plaintiff to file the instant motion. (See Motion, p.1:9-p.2:11). In the reply, Plaintiff goes as far as to claim that “GM explicitly informed Plaintiff’s counsel that it would no longer negotiate fees, and that fee motions should simply be filed instead." (See Reply, p.2:13-14). However, Plaintiff fails to support the foregoing claims with any evidence (e.g. the declarations filed in support of the motion and reply do not attest to such; no documentary evidence that Plaintiff made a demand for fees before filing the motion which was rejected). The declarations filed in support of the motion and reply do not indicate that Plaintiff provided Defendant with a demand for fees and costs in this case in a specific amount before filing the instant motion. On the other hand, defense counsel states in the declaration filed in support of the opposition that "[p]rior to filing the subject Motion, Plaintiff never provided GM with a fee demand in this case. Plaintiff also never provided billing records for evaluation and never attempted to informally resolve the amount of fees sought before filing the Motion." (See Bokmuller Decl. ¶25).

As such, the Court finds that the $2,772.00 in attorney fees incurred in relation to the instant motion plus the anticipated $4,000.00 in attorney fees in relation to reviewing the opposition, preparing a reply and attending the hearing were not reasonably incurred as the fees may have been avoided entirely if Plaintiff had informally attempted to resolve the fee issue.

The Court further finds that a multiplier enhancement is not warranted in this standard lemon law case which was resolved less than a year after filing without any law and motion matters.

Based on the foregoing, the Court awards Plaintiff attorney fees in the amount of $7,472.00 pursuant to Civil Code 1794(d). Plaintiff is also entitled to recover her costs in the amount of $2,089.79 as set forth in the Memorandum of Costs filed on 3/26/26 to which no motion to tax has been filed. The Court also notes that the opposition to the instant motion does not challenge any specific costs claimed in Plaintiff's memorandum of costs.

CONCLUSION

The motion is granted.
Plaintiff is awarded $7,472.00 in attorneys' fees plus $2,089.79 in costs/expenses for a total award of $9,561.79, payable within 30 days.

The Court notes that in violation of CRC 3.1110(f)(4) Plaintiff's counsel has failed to electronically bookmark the exhibits attached to the declarations filed in support of the motion and reply.

Counsel for the parties are warned that failure to comply with this rule in the future may result in matters being continued so that papers can be refiled in compliance with the rule, papers not being considered and/or the imposition of sanctions.